

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Genevieve Lamont	Team: Squad #08	CCRB Case #: 201902413	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/08/2019 8:30 AM	Location of Incident: § 87(2)(b) inside 28th Precinct stationhouse.	18 Mo. SOL 4/25/2021	Precinct: 28		
Date/Time CV Reported Sun, 03/10/2019 6:40 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/20/2019 11:02 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Felix Paulino	07858	962002	028 PCT
2. POM Alex Lugo	16119	959773	028 PCT
3. SGT Roberto Coppola	00903	925116	028 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Alex Lugo	Abuse: At § 87(2)(b) Police Officer Alex Lugo threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . POM Alex Lugo	Abuse: At § 87(2)(b) Police Officer Alex Lugo threatened to arrest § 87(2)(b)	B . Exonerated
C . POM Felix Paulino	Abuse: At § 87(2)(b) Police Officer Felix Paulino threatened to arrest § 87(2)(b)	C . Exonerated
D . SGT Roberto Coppola	Abuse: Inside the 28th Precinct stationhouse, Sergeant Roberto Coppola did not process § 87(2)(b)'s complaint regarding officers.	D . Unsubstantiated

Case Summary

On March 10, 2019, § 87(2)(b) filed the following complaint with the Internal Affairs Bureau, generating original IAB log #2019-9904. The complaint was received at the CCRB on March 20, 2019.

On March 8, 2019, at approximately 8:30 a.m., § 87(2)(b) went to § 87(2)(b), located at § 87(2)(b) in Manhattan, to retrieve a payroll document. § 87(2)(b) had recently been terminated from § 87(2)(b). Upon arriving, he and his former manager, § 87(2)(b) engaged in a verbal altercation, in which § 87(2)(b) ultimately called 911. PO Alex Lugo and PO Felix Paulino of the 28th Precinct responded to the scene. As the officers were speaking with § 87(2)(b) PO Lugo allegedly told § 87(2)(b) “Hold on, let me see if I can arrest you for something,” and walked into § 87(2)(b) (**Allegation A: Abuse of Authority; Unsubstantiated**). When PO Lugo returned outside, he and PO Paulino informed § 87(2)(b) that he needed to leave the premises, and if he returned, he would be arrested (**Allegation B and C: Abuse of Authority; Exonerated**).

§ 87(2)(b) then went to the 28th Precinct stationhouse and allegedly told Sgt. Roberto Coppola of the 28th Precinct that he wanted to file a complaint against PO Lugo and PO Paulino (**Allegation D: Abuse of Authority; Unsubstantiated**). He asked Sgt. Coppola which officer was responsible for taking public complaints, to which Sgt. Coppola allegedly pointed to a sign on the wall listing the information for a § 87(2)(b).

Body-worn camera footage (BWC) from PO Lugo and PO Paulino, as well as stationhouse footage from the 28th Precinct, was obtained for this incident [BR01 through BR05, respectively].

Findings and Recommendations

Allegation (A) Abuse of Authority: At § 87(2)(b) in Manhattan, Police Officer Alex Lugo threatened to arrest § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) testified that he was directed outside of § 87(2)(b) by PO Lugo and PO Paulino [BR06]. While outside, § 87(2)(b) told the officers that they were acting unprofessionally. PO Lugo then responded, “Well hold on, let me see if I can arrest you for something”, and went inside § 87(2)(b). When he returned outside, he shook his head at PO Paulino, indicating that they would not arrest him.

PO Lugo testified that he did not make this statement to § 87(2)(b) but that § 87(2)(b) could have been arrested for trespassing [BR07]. PO Paulino did not recall if PO Lugo made this statement to § 87(2)(b) [BR08]. BWC footage from PO Lugo and PO Paulino did not capture PO Lugo threatening to arrest § 87(2)(b) but the footage ended prior to PO Lugo entering § 87(2)(b) to speak with § 87(2)(b) [BR 01 and BR03, respectively]. PO Lugo reactivated his BWC prior to entering § 87(2)(b) but, due to the 30 second audio buffer, it did not capture any statements he made to § 87(2)(b) prior to entering the college [BR02]. PO Paulino also reactivated his BWC, but similarly, did not capture any statements PO Lugo made [BR04].

§ 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation (C) Abuse of Authority: At § 87(2)(b) in Manhattan, Police Officer Felix Paulino threatened to arrest § 87(2)(b)

§ 87(2)(b) testified that, prior to the officers arriving, § 87(2)(b) informed him that he was not allowed on the premises and that he had to leave [BR06]. While he did not relay this information to PO Lugo or PO Paulino, he did inform the officers that he had been fired from the college. After requesting the officers' information, PO Lugo and PO Paulino both informed him that he had to leave the premises. They further informed § 87(2)(b) that if they received another 911 call that he was on § 87(2)(b) premises, they would arrest him. PO Lugo and PO Paulino both confirmed that they told § 87(2)(b) to leave the premises, as he was no longer employed at § 87(2)(b) [BR07 and BR08, respectively]. § 87(2)(b) corroborated that he informed the officers that § 87(2)(b) had been fired, and therefore was no longer allowed on the premises [BR09]. PO Lugo stated that § 87(2)(b) could have been arrested for trespassing [BR07]. PO Paulino did not recall if he or PO Lugo specifically mentioned an arrest to § 87(2)(b) but also stated that he could have been arrested for trespassing [BR08].

§ 87(2)(g)

Allegation (D) Abuse of Authority: Inside the 28th Precinct in Manhattan, Sergeant Roberto Coppola did not process § 87(2)(b)'s complaint regarding officers.

Sgt. Coppola did not recall his interaction with § 87(2)(b) [BR11]. He did not recall an individual asking to file a complaint against PO Lugo or PO Paulino. He stated that there is no officer by the name § 87(2)(b) in the 28th Precinct nor is there a sign in the stationhouse advertising such information. Stationhouse footage from the 28th Precinct captured the interaction between Sgt. Coppola and § 87(2)(b) in which Sgt. Coppola was seen writing on a piece of paper

for § 87(2)(b) [BR05]. He was not seen pointing to a sign on the wall during this interaction. The video was not equipped with audio, and did not capture the conversation between § 87(2)(b) and Sgt. Coppola. After viewing the stationhouse video footage, Sgt. Coppola was still unable to recall the details of their conversation.

§ 87(2)(g) it is therefore recommended that **Allegation D** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint § 87(2)(b) has been party to [BR12].
- PO Lugo has been a member of service for three years. This is the first CCRB complaint he has been a subject in. § 87(2)(g)
- PO Paulino has been a member of service for two years, § 87(2)(g)
- Sgt. Coppola has been a member of service for 19 years and has been a subject in three CCRB complaints and four allegations, none of which are substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- According to the New York City Office of the Comptroller, § 87(2)(b) has not filed a Notice of Claim regarding this incident as of June 7, 2019 [BR13].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer:

Signature

Print Title & Name

Date